

GZ: 2021-0.407.457 of April 8, 2022 (Case Number: DSB-D124.666)

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DECISION

SPRUCH

The Data Protection Authority decides on the data protection complaint of Dipl. Ing. Franz A*** (complainant) from **** D*** dated April 29, 2019 against the Styrian Provincial Government (respondent) for violation of the right to confidentiality as follows:

- The complaint is denied.

Legal bases: Art. 4 No. 7, Art. 5 para. 1 lit. a, Art. 6 para. 1 lit. c and e, Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; § 18 para. 1 and § 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended, as well as § 94a para. 1, § 94b para. 1 lit. a, § 95 para. 1 lit. a, and § 98a para. 1 of the Road Traffic Regulations 1960 (StVO 1960) as amended by Federal Law Gazette I No. 29/2018, the latter provision in conjunction with § 1 of the Regulation of the Federal Minister for Transport, Innovation and Technology on section-based speed monitoring on a section of the A 9 Pyhrn Autobahn (Section Control Measurement Regulation Plabutschunnel), Federal Law Gazette II No. 321/2011.

REASONING

A. Submissions of the Parties and Procedural History

1. The present complaint procedure relates to the pending complaint procedure at the time of the decision, case number DSB-D124.317 (Dipl. Ing. Franz A*** against the State Police Directorate of Styria for violation of the right to confidentiality).

2. In his complaint received by the Data Protection Authority on April 29, 2019 (amended, in accordance with the procedural order "Deficiency Remedy Order" of the Data Protection Authority dated June 28, 2019, GZ: DSB-D124.666/0001-DSB/2019, with letter dated July 26, 2019), the complainant summarized the following: The respondent, as well as the other parties explicitly named as such, namely the State Police Directorate of Styria (hereinafter referred to as: LPD) and the Highways and Expressways Financing AG (hereinafter referred to as: ASFINAG), unlawfully processed the complainant's data as a driver of various cars with the help of a section control monitoring system operated by ASFINAG in the Plabutschunnel and transmitted it to the LPD for the initiation of administrative penalty proceedings. From the complainant's perspective, ASFINAG should actually be regarded as the driving force and interested party behind this data processing; in any case, the respondent had failed to fulfill its "supervisory duty" and "right to issue instructions" in this regard. The corresponding regulation of the respondent did not provide for a lower permissible maximum speed than 100 km/h for the relevant period of the complaint, therefore the data processing was unlawful. Since autumn 2017, the renovation and safety technical retrofitting of the Plabutschunnel of the A9-Pyhrn Autobahn in the Graz area has been carried out on behalf of ASFINAG. During construction phase 1 in 2018, the closure of one of the two tunnel tubes of the Plabutschunnel was ordered only during low traffic times at night and on weekends, and traffic was to be directed through the west tube at a maximum speed of 80 km/h in counterflow operation. In construction phase 2 during 2019, the same regulation applied using the east tube in counterflow operation. For the tunnel section of the Plabutschunnel, since October 3, 2011, the Federal Minister responsible for traffic has permanently ordered monitoring using a section control measuring device (hereinafter referred to as: SC) (Federal Law Gazette II No. 321/2011). He travels this route practically every working day on his way between home and workplace. From January 29, 2018, to March 2, 2019, the vehicle he was driving was measured by the SC in a total of 9 cases at a speed between 90 and 100 km/h, the data was transmitted to the LPD, and an administrative penalty proceeding was initiated against him in each case. He considers himself to be violated in his constitutionally guaranteed rights to respect for private life (Art. 8 ECHR) and in the fundamental right to data protection (§ 1 DSG). He first became aware of

this data processing through the delivery of an anonymous order from the LPD dated March 5, 2018, on March 9, 2018. § 98a StVO 1960 empowers the authority to achieve the goals listed there in urgent need to determine an exceedance of a numerically set permissible maximum speed with the support of automation, whereby the measurement section must be ordered. Since a permissible maximum speed of 60 or 80 km/h was not numerically set, his data should not have been processed here using the SC. Furthermore, the SC measuring bars would not be located at the points specified in the regulation Federal Law Gazette II No. 321/2011 ("between km 174.60 and 184.89"), namely at km 174.618 and 184.855. Due to the changed conditions during the work in the Plabutschunnel, the last-mentioned regulation, which was already issued in 2011, should at least apply for the duration of the validity of the regulation of the respondent regarding traffic guidance and...

traffic sign plans have been derogated, and are therefore not applicable for the time being.

Furthermore, according to the appellant, the respondent is responsible for issuing traffic restrictions due to construction work by regulation, and therefore should have also established the SC measurement section by regulation. The appellant has requested that the violation of his rights be established, as well as, in the alternative, to "initiate" his previously submitted requests for the deletion of the collected and processed personal data during the course of appeal complaints to the State Administrative Court of Styria. Several documents were attached to the appeal as evidence, including a copy of the regulation of the respondent dated November 8, 2017, GZ: ABT16-59496/2017-5, including annexes (plans) as well as a copy of the appeal(s) against several penalty notices from the LPD.

3. The respondent, having been requested accordingly by the Data Protection Authority (procedural order dated August 9, 2019, GZ: DSB-D124.666/0002-DSB/2019), countered this assertion in its statement dated September 16, 2019, as follows: § 98a StVO 1960 creates the legal regulation under which data may be processed using the SC for the purpose of traffic police monitoring. The Section Control Measurement Section Regulation Plabutschunnel, BGBl. II No. 321/2011, establishes the distance to be monitored. Thus, the conditions required by law for lawful data processing are met. It is "ultimately irrelevant" whether the authority responsible for ensuring traffic safety has set the permissible maximum speed within the distance at, for example, 80 km/h or 100 km/h. The respondent has no concerns regarding the legality of this regulation. Currently, seven ongoing appeal proceedings are pending before the State Administrative Court of Styria. The photos from the SC represent evidence in the mentioned administrative penalty proceedings, which is why deletion is not possible. The retention of this evidence must be viewed in connection with the statute of limitations provisions of § 31 VStG and § 43 VwGVG. It can be concluded that as long as the statute of limitations for an act has not occurred, the evidence available to prove the committed act must clearly be retained by the authority. Therefore, the appeal along with the deletion requests is not justified.

4. In response, the appellant summarized the following in his statement dated September 30, 2019: The regulation of the respondent dated November 8, 2017, GZ: ABT16-59496/2017-5, established the following permissible maximum speeds in the area of the SC Plabutschunnel: During single-lane operation on weekdays during the day 100 km/h in each tunnel tube, in opposing traffic operation at night and on weekends sectionally 60 km/h or 80 km/h in...

respective open tunnel tube according to the construction phase. ASFINAG has set the speed camera (SC) in such a way since the beginning of the works that speeds of less than 100 km/h are always measured, regardless of the construction phase and the traffic management in one-way or opposing traffic operation. The personal data obtained in this manner are transmitted to the LPD (Local Police Department). This department conducts administrative penalty proceedings for exceeding a speed of 80 km/h, even if a speed of up to 100 km/h would have been permissible. Through a historical and systematic interpretation of the relevant provisions of the StVO 1960 (Road Traffic Act 1960), he further concludes that the same authority is responsible for determining a speed camera measurement section and for establishing a short-term, construction-related speed limit. The regulation issued by the Federal Minister responsible for traffic, BGBl. II No. 321/2011, was therefore issued by an incompetent body. As already stated, this regulation has been derogated for the duration of the construction-related restrictions, thus lacking a legally established basis for data processing according to § 1 Abs. 2 DSG

(Data Protection Act). Due to the specific announcement of the speed camera, it is not possible for vehicle drivers to clearly recognize either the local start of the measurement or the monitored maximum speed. The deployment of the speed camera is therefore also unlawful concerning the announcement required by § 98a Abs. 4 StVO 1960. Furthermore, according to § 48 Abs. 7 DSGVO and Art. 28 Abs. 10 GDPR, ASFINAG and LPD have made themselves responsible by unilaterally intervening in the purposes (and means) of processing. In the event that the data protection authority should conclude that the Federal Minister responsible for traffic is responsible for the data processing in question, the data protection complaint will be extended to him in the alternative.

5. On October 4, 2019, the complainant supplemented his submission in writing. In this statement, he reports that he was verbally confirmed by a specifically named employee of ASFINAG over the phone that the speed camera system is owned by ASFINAG, is operated by ASFINAG, and that the technical setup and adjustment are carried out by personnel from H*** Bildverarbeitungs G.m.b.H. (L***, Germany), commissioned by ASFINAG. The actual measurement setup of the speed camera is carried out on the instruction of the "State Traffic Authority" in cooperation with the State Traffic Department of the LPD and is not influenced by ASFINAG. The collected data are not visible to ASFINAG and are transmitted automatically to the LPD. There is a data protection processing agreement with the respondent (represented by Department 16 of the Office of the Styrian State Government). The complainant has also submitted a copy of the minutes from the oral hearing on September 27, 2019, before the State Administrative Court of Styria (regarding the administrative penalty proceedings against him).

6. On October 18, 2019, the data protection authority sent a request for assistance to the State Administrative Court of Styria (reference: DSB-D124.317/0007-DSB/2019, explicitly referring to the present proceedings).

7. In a letter dated October 23, 2019, the complainant submitted copies of a statement from ASFINAG Maut Service GmbH dated October 18, 2019, to the State Administrative Court of Styria regarding the locations of the speed cameras in the Plabutsch Tunnel, as well as his own statement dated October 22, 2019, to the data protection authority. He further argued that ASFINAG confirms therein that the measurement section established by regulation BGBl II No. 321/2011 was not monitored.

8. By procedural order of the data protection authority dated October 25, 2019, reference: DSB-D124.666/0007-DSB/2019, the complainant was granted the opportunity to be heard regarding the procedural results available at that time, which did not originate from him.

9. By decision dated November 11, 2019, reference: LVwG *2.4*-*57*/2019-3 (leading) and others, the State Administrative Court of Styria informed that it had submitted a regulation challenge to the Constitutional Court regarding the improper announcement of the regulation of the Styrian State Government dated November 8, 2017, reference: ABT16-59496/2017-5, concerning the traffic plan "301401501/13-81/0-509/PITu/V1A-Traffic Management Construction Phase 1 South Portal RV Operation" and the traffic plan "301401501/13-82/0-509/PITu/V1A-TRAFFIC MANAGEMENT-13 Traffic Management Construction Phase 1 North Portal RV Operation" in the area of the Section Control measurement section Plabutsch Tunnel, A9 Phyrn Autobahn, from km 174.60 to km 184.89, direction Voralpenkreuz, Construction Phase 1. Several documents were attached, including a copy of the application addressed to the Constitutional Court.

10. The data protection authority subsequently suspended the complaint proceedings by a final decision dated November 27, 2019, reference: DSB-D124.666/0008-DSB/2019, in accordance with § 38 AVG (General Administrative Procedure Act) until a decision from the Constitutional Court is available.

11. In a letter dated May 6, 2021, the complainant requested the continuation of the proceedings. He also submitted a copy of the decision of the Constitutional Court dated March 10, 2021, reference: V 95-96/2019-15 (rejection of the application of the State Administrative Court of Styria as above) and several findings of this State Administrative Court. The penalty findings he contested have been revoked, and the...

****Administrative Penalty Proceedings Closed:**** He maintains his complaints and the applications submitted to the Data Protection Authority.

12.

By decision dated June 2, 2021, GZ: 2021-0.338.035, the Data Protection Authority has revoked the suspension order as mentioned above.

13.

In a further statement dated August 27, 2021, the complainant, insofar as relevant to this procedure, again asserted that the monitoring using the SC was not conducted in the prescribed manner (with a differently set monitored maximum speed), and thus was carried out unlawfully, thereby infringing upon his fundamental right to confidentiality.

****B. Subject of the Complaint****

14.

From the submissions of the parties, it is evident that the subject of the complaint in this procedure is the question of whether the respondent has unlawfully interfered multiple times with the complainant's fundamental right to confidentiality of his personal data as a driver and highway user through data processing using an SC, particularly during the years 2018 and 2019. The question of whether the complainant could be prosecuted or punished for one or more administrative offenses based on the results of the SC measurements is not the subject of this case.

****C. Findings of Facts****

15.

The complainant regularly drives various motor vehicles on his way to and from work along the federal highway A9 (Pyhrn Autobahn) between the half-interchange Graz-Nord km 174.2 and the interchange Graz-Webling km 184.9 through the Plabutschunnel in the area of the provincial capital Graz. In this section of road, reconstruction and renovation work took place in the years 2018 and 2019, which necessitated a temporary (late evening/night and on weekends) closure of one tunnel tube of this two-tube highway tunnel. By regulation of the respondent dated November 8, 2017, GZ: ABT16-59496/2017-5, including attachments (particularly traffic sign plans), speed restrictions below the otherwise applicable maximum speed of 100 km/h were imposed.

16.

Since 2011, the maximum speed in the Plabutschunnel between km 174.60 and km 184.89 has been monitored through section-related speed monitoring using SC. The respondent employs ASFINAG as a processor, which in turn engages H*** Image Processing G.m.b.H. (L***, Germany) as another processor (technical service provider). A fully automated data transmission to the LPD as the administrative penalty authority occurs when the measurement results indicate a suspicion of an administrative offense. This system was also used to monitor the special speed restrictions in effect during the years 2018 and 2019.

17.

The complainant has been affected by this data processing practically twice daily on working days since 2011. Image data of his vehicle and his person as the driver have been processed in connection with the result of the section-related speed measurement (average speed on the measurement stretch, hereinafter referred to as: v). In a total of nine cases during the complaint period (January 29, 2018, 15:22-15:29, v = 92 km/h; February 8, 2018, 16:33-16:39, v = 94 km/h; February 13, 2018, 16:36-16:43, v = 93 km/h; February 19, 2018, 16:14-16:20, v = 91 km/h; March 7, 2018, 17:50-17:56, v = 95 km/h; March 13, 2018, 18:49-18:55, v = 93 km/h; June 30, 2018, 17:31-17:37, v = 97 km/h; November 29, 2018, 18:04-18:11, v = 92 km/h; and March 2, 2019, around 12:55, v = 95 km/h) his data was transmitted to the LPD.

18.

****Assessment of Evidence:**** These findings, which are not disputed between the parties (only the question of the validity of the speed restrictions established by regulation is disputed, such as their lawful announcement through traffic signs), are based on the statements of the complainant and the documents he submitted.

****D. Legal Conclusions:****

****D.1. Summary:****

19.

The complaint has proven to be unfounded, as there is a statutory and regulatory authorization for the data processing using the SC, and the processing can therefore rely on justification grounds according to § 1 para. 2 DSG and Art. 6 para. 1 lit. c and e GDPR.

****D.2. Applicable Legal Provisions:****

20.

The fundamental right to confidentiality enshrined in § 1 DSG, according to its first paragraph, grants everyone, particularly with regard to the respect for their private and family life, a claim to the confidentiality of their personal data, as long as there is a legitimate interest in this. This includes the protection of the affected person from the collection of their data and the disclosure of the data collected about them. However, the fundamental right to confidentiality is not absolute and may be restricted by certain permissible interventions.

21.

It should be noted that in the present case, a violation of the right to confidentiality according to § 1 para. 1 DSG is to be examined, and restrictions on this claim arise from § 1 para. 2 DSG.

22.

According to § 1 para. 2 DSG, restrictions on the right to confidentiality, insofar as the use of personal data does not occur in the vital interest of the data subject or with their consent, are only permissible to safeguard overriding legitimate interests of another party, whereby interventions by a state authority may only occur based on laws that are necessary for the reasons stated in Art. 8 para. 2 ECHR.

23.

However, the GDPR and, in particular, the principles enshrined therein must be taken into account when interpreting the right to confidentiality (see the decision of July 4, 2019, GZ: DSB-D123.652/0001-DSB/2019, RIS).

24.

According to Art. 4 no. 7 GDPR, "controller" refers to the natural or legal person, authority, institution, or other entity that alone or jointly with others determines the purposes and means of processing personal data; if the purposes and means of this processing are specified by Union law or the law of the Member States, the controller or the specific criteria for their designation may be provided for by Union law or the law of the Member States.

25.

According to Art. 5 para. 1 lit. a GDPR, personal data must be processed lawfully, fairly, and in a transparent manner in relation to the data subject ("Lawfulness, Fair Processing, Transparency").

26.

According to Art. 6 para. 1 GDPR, the processing of personal data is lawful, among other things, if the processing is necessary for compliance with a legal obligation to which the controller is subject (lit. c) or if the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller (lit. e).

27.

§ 98a StVO 1960 had two versions during the complaint period (January 2018 to April 29, 2019). From May 25, 2018, to December 27, 2019, it read according to BGBl. I No. 29/2018 with the heading:

"Section-related Speed Monitoring

§ 98a. (1) If it appears urgently necessary to increase or ensure road safety or to prevent dangers or nuisances, particularly from noise, odor, or pollutants, and to protect the population or the environment, the authority may use automation-supported technical facilities to detect an exceedance of a numerically set maximum speed limit, with which the average driving speed of a vehicle can be measured over a specified distance. These technical facilities include all components of the system that serve the aforementioned purpose. The measurement route is to be determined by regulation. The use of these technical facilities is subject to the regional police directorate in whose local jurisdiction...

****Scope of Effectiveness****

The designated measurement section ends, seven days prior to its commencement, for the purposes of paragraph 2, first sentence, to be communicated.

(2) The authority in whose local area of jurisdiction the designated measurement section ends must

transmit the data determined according to paragraph 1 to the state police directorate upon request for the purposes of § 54 paragraph 4b of the Security Police Act – SPG, Federal Law Gazette No. 566/1991, and criminal law enforcement. Furthermore, these data may only be used beyond the time of determining the average driving speed on a designated route in the case of an infringement and only to the extent necessary for the identification of a vehicle or a driver, and exclusively for the purposes of an administrative penalty procedure due to exceeding the permissible maximum speed. Data that do not pertain to infringement cases must be deleted immediately and in a non-retraceable manner.

(3) To the extent that the imaging capture of persons other than the vehicle driver cannot be technically excluded, these persons must be rendered unrecognizable without unnecessary delay in a non-retraceable manner.

(4) The beginning and end of the measurement section monitored by a technical device according to paragraph 1 must be announced.

28.

Previously, the provision according to Federal Law Gazette I No. 16/2009 read:

****Section-related Speed Monitoring****

§ 98a. (1) If it appears urgently necessary to increase or ensure traffic safety or to keep dangers or nuisances, particularly from noise, odor, or pollutants, away, and to protect the population or the environment, the authority may use automation-supported means to determine an infringement of a numerically set permissible maximum speed by employing imaging technical devices that can measure the average driving speed of a vehicle over a designated route. These technical devices include all components that serve the aforementioned purpose. The measurement section is to be established by regulation.

(2) The data obtained in this process may only be used beyond the time of determining the average driving speed on a designated route in the case of an infringement and only to the extent necessary for the identification of a vehicle or a driver, and exclusively for the purposes of an administrative penalty procedure due to exceeding the permissible maximum speed. Data that do not pertain to infringement cases must be deleted immediately and in a non-retraceable manner.

(3) To the extent that the imaging capture of persons other than the vehicle driver cannot be technically excluded, these persons must be rendered unrecognizable without unnecessary delay in a non-retraceable manner.

(4) The beginning and end of the measurement section monitored by a technical device according to paragraph 1 must be announced.

29.

According to § 1 of the Section Control Measurement Section Regulation Plabutschunnel, the route on which compliance with the permitted maximum speed is to be monitored with an imaging technical device that measures the average driving speed of a vehicle on this route (measurement section) is each section.

between km 174.60 and km 184.89 on both carriageways of the A 9 Pyhrn Autobahn established.

D.3.

Passive Legitimacy

of the

Respondent

and

Delimitation

of the

Subject of the Complaint:

30.

The passive legitimacy, which is here the right or obligation to participate as the respondent party (Respondent) in a complaint procedure before the Data Protection Authority, arises from the responsible role, which in turn can be derived from the statutory and constitutional jurisdiction (according to Art. 11 para. 1 no. 4 B-VG, the enforcement of road

police law is a matter for the states) of the Respondent as an administrative authority. According to Art. 4 no. 7 GDPR, the "purposes and means of this processing" are defined here in the form of the SC by § 98a para. 1 StVO 1960, so that the "authority" in the sense of the quoted provision also assumes the role of the data controller.

31.

According to § 94a para. 1 sentence 2 StVO 1960, the state government of a federal state is "in any case responsible for the handling of traffic police (§ 94b para. 1 lit. a) on highways." According to the definition contained in § 94b para. 1 lit. a StVO 1960, traffic police is "the monitoring of compliance with road police regulations and the immediate regulation of traffic by arm or light signals." The Respondent can, especially for the immediate regulation of traffic, rely on the specially trained bodies of the Federal Police ("traffic police officers") that are functionally subordinate to it according to § 94a para. 2 StVO 1960. However, it follows unequivocally from § 95 para. 1 lit. a StVO 1960 that the LPD has no administrative jurisdiction over traffic police here, as it concerns a highway.

32.

The jurisdiction for monitoring compliance with road police regulations, which also includes restrictions on the maximum permissible speed, must be distinguished from the jurisdiction as an administrative penal authority. The traffic police authority, here the Respondent, is responsible for monitoring speed limits on a highway, collecting data from which the suspicion of corresponding administrative offenses arises, and transmitting this to the administrative penal authority, which, according to § 95 para. 1 lit. b StVO 1960, had to intervene locally (the municipal area of the state capital Graz) as the LPD.

33.

In this complaint case, only the legality of the processing of the complainant's data for the purposes of traffic police monitoring (investigation/recording, storage, and transmission) is to be examined. The question of whether the complainant has committed an offense is, even as a preliminary question, not to be examined by the Data Protection Authority, as the legality of the monitoring, which is always of a general nature, does not depend on the question of the criminality of the behavior in the individual case.

Someone may have been lawfully monitored even if they have not committed an offense. The data processing by the LPD for the purposes of the administrative penal proceedings initiated against the complainant is the subject of the pending data protection complaint case under procedure number DSB-D124.317.

34.

ASFINAG and LPD were explicitly not involved in this matter by the complainant, meaning they were not designated as respondents, but only referred to as "participants" (perhaps in the sense of § 8 AVG, as the subject of the proceedings also relates to them). There is also no reason to involve the now responsible Federal Ministry for Climate Protection, Environment, Energy, Mobility, Innovation, and Technology (BMK) in the proceedings (see above, para. 4).

D.4. Legality of Monitoring and Speed Limits:

35.

The Data Protection Authority concludes, unlike the complainant, that the legality of the monitoring and the data processing that occurred as a result must be considered and assessed independently of the question of the legality of a speed limit established by regulation. Only for the latter question can the complainant's submissions regarding administrative jurisdiction, legal basis, and regulatory announcement of such a restriction by traffic signs be of decisive importance. The SC processes data based on which it must be examined according to the applicable traffic regulations – the validity of which, for example, requires a faultless announcement – whether a particular driver is responsible for an administrative offense. Consequently, the law also provides for the case that the authority, which according to § 98a para. 1 StVO 1960 has to determine the measurement section (= part of the authorization for

data processing), may be different from the one that has to impose a speed limit. This is, contrary to what the complainant has repeatedly asserted, not a legislative oversight or incorrect interpretation of the law, but an expression of a legally desired separation of tasks. Therefore, the validity of the legal authorization for data processing is also independent of the maximum speed to be observed on the measurement section and its legal bases.

36.

The status as a data subject of the data processing using the SC applies to any person whose (image) data has been recorded, regardless of whether they have been accused of an administrative offense as a result of the data processing. The present complaint could therefore also have been filed and would have had to be addressed even if no administrative penal proceedings had been initiated against the complainant.

D.5. Legality of Monitoring:

37.

The constitutional admissibility of a speed camera (SC) as a means of monitoring and data processing has been recognized by the Constitutional Court in its ruling of June 15, 2007, VfSlg 18146/2007.

38.

For the data processing carried out using the SC, of which the complainant was (and is) the subject, there exists a valid and sufficient legal basis under § 98a para. 1 StVO 1960 in conjunction with § 1 Section Control Measurement Regulation Plabutschunnel. As the highway traffic police authority, the respondent was (among other things) responsible for the enforcement of these legal provisions, which serve traffic monitoring. The data processing was therefore necessary in accordance with Art. 6 para. 1 lit. c GDPR for the fulfillment of a legal obligation imposed on the respondent.

39.

The case law of the Court of Justice of the European Union (CJEU) has further clarified recently that the improvement of road traffic safety is a goal recognized by the Union in the general interest, which falls under Art. 6 para. 1 lit. e GDPR (CJEU, judgment of June 22, 2021, C-439/19, para. 108 with references).

40.

The respondent has therefore processed the complainant's data based on a legal authorization that serves a goal of general interest, and in accordance with a legal mandate, which justifies this processing by legal grounds (Art. 6 para. 1 lit. c and e GDPR).

D.6. Conclusion:

41.

The respondent has processed the complainant's data lawfully in accordance with Art. 5 para. 1 lit. a GDPR.

42.

The complaint was therefore to be dismissed as unfounded in accordance with Art. 24 para. 5 sentence 3 DSG.

43.

Regarding the "in eventu," that is, in the event that the complaint regarding the declaratory request is upheld, the request to initiate the deletion of the processed data need not be addressed in light of this outcome.